

1.

CASE #	CASE NAME	HEARING NAME
CVRI2506601	JONES VS YRUNGARAY	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE BY BENJAMIN YRUNGARAY

Tentative Ruling: The Court finds that the meet and confer requirement was not met; specifically, the evidence indicates counsel exchanged emails and other written correspondence but did not speak in person, via telephone, or by videoconference about these issues. This does not satisfy CCP §2016.040(a). The Court also finds that the motion is MOOT. The Court denies requests for sanctions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506601	JONES VS YRUNGARAY	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (SET 2) AND REQUEST FOR MONETARY SANCTIONS BY BENJAMIN YRUNGARAY

Tentative Ruling: The Court finds that the meet and confer requirement was not met; specifically, the evidence indicates counsel exchanged emails and other written correspondence but did not speak in person, via telephone, or by videoconference about these issues. This does not satisfy CCP §2016.040(a). The Court also finds that the motion is MOOT. The Court denies requests for sanctions.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506601	JONES VS YRUNGARAY	DEMURRER ON 1ST AMENDED CROSS-COMPLAINT OF BENJAMIN YRUNGARAY BY BRIAN HOPKINS, JSAMJ, INC., JARED JONES

Tentative Ruling: The Court OVERRULES the demurrer as to the first, tenth, eleventh, and thirteenth causes of action. The Court SUSTAINS the demurrer as to JSAMJ for the fifth through ninth, and twelfth causes of action with leave to amend.

Quiet Title (1st COA)

There are multiple properties at issue in the FACC. The first cause of action concerns real property located at 7603 Dufferin Avenue, Riverside, California ("Upper Dufferin"). The FACC alleges in June 2021, Jones, by and through his entity JSAMJ, Inc., purchased the property from its former owners. (FACC ¶12.) Jones/JSAMJ, Inc. agreed to assume the existing first trust deed. Then, Jones, Hopkins, and Yrungaray